

3.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> 2025-01489807	Before the court is the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As set forth below, the hearing is continued to THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained. On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the \$27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant now has filed this motion of claim for disbursement of surplus funds. (ROA 49.) The proof of service submitted with the motion, however, is deficient in multiple ways. First, the proof of service filed on March 16, 2026, states a "case management statement" was served. (ROA 39.) It does not identify the notice of motion, memorandum of points and authorities, or the supporting declaration as being served. Second, the proof of service states the "case management statement" was served solely on counsel for Homestead Equities, LLC. All documents also should be served on Homestead Equities, LLC at the address listed in attachment 8 to the petition. The motion itself also is deficient in that the declaration of Nina Ilkhanoff submitted as the factual basis for the motion is not signed by Nina Ilkhanoff. Instead, the declaration is signed by Cynthia Ilkhanoff. The signature block states Cynthia Ilkhanoff has a power of attorney for Nina Ilkhanoff. Notably, that portion of the declaration is not under penalty of perjury and no copy of the alleged power of attorney was submitted with the declaration showing the scope of the power of attorney. Furthermore, Code of Civil Procedure
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